

25NWCV01939 25NWCV01939

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Case Number: 25NWCV01939 Hearing Date: September 15, 2026 Dept: L

PAUL KEM

HODSON, JR. vs JAVIER RODRIGUEZ, et al.

CASE NO.: 25NWCV01939

HEARING: September 15, 2026 @ 9:30

a.m.

#19

TENTATIVE ORDER

I.

Defendant Cerchio and Son, Inc.'s Motion

to Compel Further Responses to Form Interrogatories, Set One, is GRANTED.

II.

Defendant Cerchio and Son, Inc.'s Motion

to Compel Further Responses to Special Interrogatories, Set One, is GRANTED.

III.

Defendant is awarded \$800.00 in sanctions

for both Motions, payable within 60 days.

Defendant to give notice.

Background

This is a motor vehicle negligence action regarding an accident that occurred on April 8, 2024. On May 29, 2025, Plaintiff Paul Kem Hodson, Jr. ("Plaintiff") filed this action against Defendants Javier Rodriguez, Cerchio and Son, Inc., and Does 1 to 50. The Complaint alleges causes of action for 1) Negligence and 2) Negligence Entrustment.

On July 9, 2025, Defendant Cerchio and Son, Inc. (hereinafter, "CSI") served 1) Form Interrogatories, Set One, and 2) Special Interrogatories, Set One, on Plaintiff. (Lyu Decls., ¶ 3, Exh. A.)

CSI granted Plaintiff's request for an extension, and Plaintiff served his responses on September 10, 2025. (Lyu Decls., ¶ 4.)

CSI now moves to compel Plaintiff's further responses to 1) Form Interrogatories, Set One, and 2) Special Interrogatories, Set One.

Legal Standard

Code of Civil Procedure section 2030.220 states the following:

"(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.

(b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible.

(c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party."

(Code Civ. Proc., § 2030.220.)

Code of Civil Procedure section

2030.300 allows a party to file a motion compelling further answers to interrogatories if it finds that the responses are inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).)

Meet and Confer

A motion to compel further responses to interrogatories shall be accompanied with a meet and confer declaration. (Code Civ. Proc., § 2030.300, subd. (b)(1).)

On September 22, 2025, CSI sent a meet and confer correspondence, requesting that Plaintiff provide further verified responses by September 26, 2025. (Lyu Decls., ¶ 4, Exh. B.) On September 30, 2026, Plaintiff replied, confirming receipt of the correspondence and arguing that the responses were Code-compliant. (Lyu Decls., ¶ 4, Exh. C.) Plaintiff only offered to supplement his responses to Form Interrogatory No. 4.1. (Ibid.) On October 2, 2025, CSI sent an additional meet and confer letter, requesting that further responses be served by October 6, 2026. (Lyu Decls., ¶ 4.) Plaintiff maintained his position but agreed to serve supplemental verified responses to Form Interrogatories Nos. 4.1 and 2.6. (Ibid.) As of the date this Motion was filed on October 27, 2025, Plaintiff failed to provide further verified responses. (Lyu Decls., ¶ 5.)

The Court finds that the meet and confer requirement has been met.

Discussion

I.

MTCF Form Interrogatories, Set One
("FROGs")

CSI moves to compel Plaintiff's further responses to FROG Nos. 2.6, 4.1, 6.3, 6.5, 6.7, 7.1, 7.2.

In the opposition notice and separate

statement, Plaintiff states that “any remaining dispute about any Interrogatory responses not listed here – specifically the responses to Form Interrogatories Nos. 2.6, 4.1, 7.1, and 7.2 – will be resolved in full prior to the hearing on these motions.” (Opp. Notice, 2:4-6.)

However, there is no indication in the reply or otherwise that further responses have been served. The Court will thus treat all FROGs in dispute.

- FROG

No. 2.6: State: (a) the name, ADDRESS, and telephone number of your present employer or place of self employment; and (b) the name, ADDRESS, dates of employment, job title, and nature of work for each employer or self-employment you have had from five years before the INCIDENT until today.

Plaintiff responded the following: “(a)

Dewey Pest Control, 2022 - Present, 7000 Telegraph Rd. Commerce, CA 90040, Pest Technician. (b) Terminex Pest Control, 2018 – 2022, Pest Technician.”

CSI asserts that Plaintiff “failed to provide the address/contract information for his prior employer Terminix.” (See FROG Sep. Statement.) Further, Plaintiff previously agreed to supplement his response, but failed to do so.

The Court agrees with CSI. Plaintiff does not address these FROGs in the separate statement. As stated previously, there is no indication that Plaintiff has provided a further response as promised.

Accordingly, the Motion to Compel Further Responses is GRANTED as to FROG No. 2.6.

- FROG

No. 4.1: At the time of the INCIDENT, was there in effect any policy of insurance through which you were or might be insured in any manner (for example, primary, pro-rata, or excess liability coverage or medical expense coverage) for the damages, claims, or actions that have arisen out of the INCIDENT? If so, for each policy state: (a) the kind of coverage; (b) the name and ADDRESS of the insurance company; (c) the name, ADDRESS, and telephone number of each named insured; (d) the policy number; (e) the limits of coverage

for each type of coverage contained in the policy; (f) whether any reservation of rights or controversy or coverage dispute exists between you and the insurance company; and (g) the name, ADDRESS, and telephone number of the custodian of the policy.

CSI asserts that, in his response, Plaintiff "provided the insurance information for Defendants and not his own." (Sep. Statement, 3:16.) Further, Plaintiff previously agreed to supplement his response, but failed to do so.

The Court agrees with CSI. Plaintiff does not address these FROGs in the separate statement. However, as stated previously, there is no indication that Plaintiff has provided a further response as promised.

Accordingly, the Motion to Compel Further Responses is GRANTED as to FROG No. 4.1.

- FROG

No. 6.3: Do you still have any complaints that you attribute to the INCIDENT? If so, for each complaint state: (a) a description; (b) whether the complaint is subsiding, remaining the same, or becoming worse; and (c) the frequency and duration.

- FROG

No. 6.5: Have you taken any medication, prescribed or not, as a result of injuries that you attribute to the INCIDENT? If so, for each medication state: (a) the name; (b) the PERSON who prescribed or furnished it; (c) the date it was prescribed or furnished; (d) the dates you began and stopped taking it; and (e) the cost to date.

- FROG

No. 6.7: Has any HEALTH CARE PROVIDER advised that you may require future or additional treatment for any injuries that you attribute to the INCIDENT? If so, for each injury state: (a) the name and ADDRESS of each HEALTH CARE PROVIDER; (b) the complaints for which the treatment was advised; and (c) the nature, duration, and estimated cost of the treatment.

Plaintiff responded the following to each of these FROGs:

“Objection.

Attorney-client privilege, attorney work product, prematurely calls for expert identification and/or opinions. Subject to and without waiving said objections, Plaintiff responds as follows:

Yes.

A compilation, abstract, audit or summary [sic] is necessary in order to answer the remainder of the interrogatory. None such currently presently [sic] exists, and the costs of preparing one are substantially similar for Propounding Party as for Responding Party. Thus, pursuant to Code of Civil Procedure §2030.230, Plaintiff identifies the medical records and bills in her possession, custody and control, which are concurrently being produced, as well as the medical records and bills not in Plaintiff's possession, but in the possession of: [as to FROG Nos. 6.3 and 6.5, contact information for 11 medical providers, and as to FROG No. 6.7, contact information for 2 medical providers]. Discovery is continuing.”

(FROG Sep. Statement.)

CSI contends that Plaintiff's response to these FROGs is not Code-compliant. In responding, Plaintiff merely refers to a “mass of documents,” and fails “to identify where in these mass of documents the information can be found such as by document title, Bates number, page/paragraph where each answer can be found [...]” (FROG Mot., 6:16-28, 7:1-3.)

In opposition, Plaintiff argues that he properly invoked Code of Civil Procedure section 2030.230, which allows responding parties to reference documents in response to an interrogatory if proper procedure is followed. Specifically, Plaintiff 1) stated that the interrogatory would require Plaintiff to prepare a compilation, abstract, audit, or summary of or from documents, 2) stated that the burden or expense of preparing or making it would be substantially the same for either party, 3) produced all potentially responsive documents in Plaintiff's possession, and 4) listed all medical providers that may have additional records that were not in Plaintiff's possession. Plaintiff assert such responses are sufficient.

“If

the answer to an interrogatory would necessitate the preparation or the making

of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained. The responding party shall then afford to the propounding party a reasonable opportunity to examine, audit, or inspect these documents and to make copies, compilations, abstracts, or summaries of them."

(Code Civ. Proc., § 2030.230, emphasis added.)

The Court finds that Plaintiff's responses are insufficient to invoke Code of Civil Procedure section 2030.230. Plaintiff fails to describe, with sufficient particularity, the records from which the compilation of information can be made so that they can be easily located. For example, Plaintiff admits that he has "described the entire universe of documents that would provide answers to [CSI's] interrogatories." (Opp., 5:16-17, emphasis added.) The Court reads this statement as an admission that Plaintiff made no effort to identify documents with specificity. The Court agrees with CSI that the onus to extrapolate Plaintiff's answers from the documents is effectively placed on CSI. Further, Plaintiff states that the burden or expense of preparing the summary of such documents would be the same for both parties without providing any explanation for such contention.

Accordingly, the Motion to Compel Further Responses is GRANTED as to FROG Nos. 6.3, 6.5, and 6.7.

- FROG

NO. 7.1: Do you attribute any loss of or damage to a vehicle or other property to the INCIDENT? If so, for each item of property: (a) describe the property; (b) describe the nature and location of the damage to the property; (c) state the amount of damage you are claiming for each item of property and how the amount was calculated; and (d) if the property was sold, state the name, ADDRESS, and telephone number of the seller, the date of sale, and the sale price.

- FROG

No. 7.2: as a written estimate or evaluation been made for any item of property referred to in your answer to the preceding interrogatory? If so, for each estimate or evaluation state: (a) the name, ADDRESS, and telephone number of the PERSON who prepared it and the date prepared; (b) the name, ADDRESS, and telephone number of each PERSON who has a copy of it; and (c) the amount of damage stated.

In response to FROG No. 7.1,

Plaintiff states the following: "(a) The vehicle belonged to the plaintiff's employer. Thus, the information requested by this interrogatory is more readily available to the responding party's employer. (b) Rear end damage to vehicle (c) Unknown to plaintiff. Discovery is ongoing. (d) Unknown to plaintiff.

Discovery is ongoing." (FROG Sep. Statement.) IN response to FROG No. 7.2, Plaintiff states the following: "Objection. Attorney-client privilege, attorney work product, prematurely calls for expert identification and/or opinions. Subject to and without waiving said objections, Plaintiff responds as follows: [¶] Unknown as to plaintiff. Discovery is ongoing." (Ibid.)

CSI argues that Plaintiff has

failed to properly respond to FROG No. 7.1, subdivisions (c) and (d), and No. 7.2.

The Court notes that Plaintiff

does not address these FROGs in the separate statement. As stated previously, there is no indication that Plaintiff has provided a further response as promised to these FROGs.

Section 2030.220, subdivision (a)

requires a responding party to provide a response "as complete and straightforward as the information reasonably available to the responding party permits." (Code Civ. Proc., § 2030.220, subd. (a); see also *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 782 ["If only partial answers can be supplied, the answers should reveal all information then available to the party. If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control."].)

Plaintiff therefore cannot avoid

providing a substantive response based on the fact that its investigation is

ongoing. The Court finds that, if Plaintiff has no responsive information, it should state so and set forth in detail the efforts it made to secure such information.

Accordingly, the Motion to Compel Further Responses is GRANTED as to FROG Nos. 7.1 and 7.2.

II.

MTCF Special Interrogatories, Set One
("SROGs")

CSI moves to compel Plaintiff's further responses to SROG Nos. 7, 8, 12, 17, 18, 23, 24, 25, 26, 27, 29, 30, and 37. Such SROGs concern "Plaintiff's alleged injuries as a result of the incident, diagnoses, disability as a result of the incident, [and] activities that he can no longer participate in, and future medical treatment [...]." (SROG Mot., 3:14-16.)

Plaintiff responded to each of these SROGs in a manner essentially identical to his responses to FROG Nos. 6.3 and 6.5. Because Plaintiff's response is identical as to each SROG, the Court finds it unnecessary to reproduce each interrogatory here.

The Court finds that Plaintiff's duplicative responses are inadequate for reasons previously stated in relation to the FROGs.

Accordingly, the Motion to Compel Further Responses is GRANTED as to SROG Nos. 7, 8, 12, 17, 18, 23, 24, 25, 26, 27, 29, 30, and 37.

Sanctions

The court shall impose a monetary sanction against any party who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2030.300, subd. (d).)

CSI requests sanctions in the amount of \$800.00 for each Motion.

In the joint opposition, Plaintiff requests sanctions in the amount of \$2,400.00 on grounds that CSI made these Motions in bad faith. Plaintiff further argues that CSI improperly brought two motions, likely to drive up sanctions, where only one could have been brought.

The Court finds that sanctions are warranted where CSI succeeded as to both Motions. However, the Court reduces sanctions on grounds that primary issue in both Motions was substantially similar, and Plaintiff filed a joint opposition.

Therefore, CSI is awarded sanctions in the amount of \$800.00 in total for both Motions